

Subject: Re: Town meeting communication channel issues
From: Stephen Harrington <sth.alist@gmail.com>
Date: 8/17/26, 13:05
To: Jim Feeney <JFeeney@town.arlington.ma.us>, John Hurd <JHurd@town.arlington.ma.us>
CC: Ashley Maher <amaher@town.arlington.ma.us>, Greg Christiana <gchristiana@town.arlington.ma.us>

Dear Mr. Feeney,

Thank you for your August 12 response concerning my July 27 request to the Select Board regarding resident communications with Town Meeting Members.

I appreciate your advising me that the Town Meeting Procedures Committee discussed the matter at its August 4 meeting. I will review the minutes when they become available. The Committee's consideration of possible changes, however, does not answer the separate question I asked concerning the existing authority for the Town's current submission restrictions.

My request remains:

I am asking for two things: first, that this issue be placed on a public agenda for discussion and action; second, that the Town Manager provide a written response addressing the Town's authority over the TMM Email List, the basis for excluding direct resident submissions, and the process for adopting a neutral resident submission channel that becomes part of the public record.

More precisely, I am asking that germane written advocacy from identified Arlington residents be permitted to be received, retained, and publicly posted as correspondence associated with the relevant warrant article, without requiring sponsorship or co-signature by a Town Meeting Member.

Source of the Existing Co-Signer Rule

The historical record provides a useful starting point.

On May 16, 2022, the Moderator announced rules governing submissions to the TMM Email List and Annotated Warrant. That communication stated that, after consultation with the Town Clerk and Town staff, Town Meeting Members could submit materials they had co-signed with residents.

That rule therefore appears to predate the Town Meeting Procedures Committee's 2023 written Town Meeting Guidelines, which later incorporated

substantially the same requirement.

Accordingly, I am asking a straightforward governmental-authority question:

What is the source of authority for the May 16, 2022 rule that permits privately authored resident advocacy to reach the Town's TMM Email List and Annotated Warrant only through a Town Meeting Member co-signer, and what governmental entity has authority to amend or repeal that rule?

If the authority is claimed to arise from the Moderator's office, please identify the applicable General Law, special act, charter provision, bylaw, Town Meeting vote, or written delegation.

If it is a rule of the Town Meeting Procedures Committee, please identify the meeting, vote, minutes, and source of authority by which the Committee adopted a binding rule rather than merely recommending a procedure to Town Meeting.

If it is an administrative policy adopted by the Town Clerk, Town Manager, Information Technology staff, or another Town official, please identify who adopted it and under what authority.

If it is simply a historical practice, please say so.

I would also appreciate identification of the records associated with the consultation referenced in the Moderator's May 16, 2022 communication with the Town Clerk and Town staff.

The TMPC certainly may consider and recommend matters involving Town Meeting procedure. But its consideration of my proposed remedy does not establish the legal or administrative basis for the restriction presently being applied.

Moderator Authority and Town Administrative Functions

The distinction matters because the Massachusetts General Laws principally make the Moderator the presiding and parliamentary officer of a duly called Town Meeting.

M.G.L. c. 39, § 15 provides that the Moderator shall “preside and regulate the proceedings” and decide questions of order. Sections 14 through 18 likewise concern the conduct of the meeting, voting, recognition, order, and related functions.

I have not identified a provision in those statutes expressly giving a Moderator

general year-round authority to regulate access to a municipal email distribution system, Town website, or electronic archive.

Arlington's own bylaws, meanwhile, place the general direction and management of Town affairs with the Select Board where not otherwise provided, authorize the Select Board to publish information on the Town website, and place Town software infrastructure and administrative applications under the management structure of the Town Manager.

If the Town's position is that the TMM Email List and Annotated Warrant are exceptions to those provisions and instead fall within the independent authority of the Moderator, please identify the legal or delegated authority creating that exception.

This is materially different from the Moderator's unquestioned authority to recognize speakers, enforce order, make parliamentary rulings, and regulate the actual proceedings of Town Meeting.

Direct Resident Submissions

Your response suggests that creation of a public communication channel could mean that “anyone could electronically submit anything, without any sort of verification, perhaps unrelated to matters before Town Meeting, at any time.”

That is not what I requested.

A neutral resident submission process need not be anonymous, unlimited, or unrelated to Town Meeting business.

The Town could establish objective eligibility requirements such as:

- identification of the Arlington resident submitting the material;
- a requirement that the material concern an unresolved warrant article;
- reasonable filing deadlines;
- reasonable length and format requirements; and
- consistent administrative rules governing publication and retention.

What I question is the additional requirement that a resident must obtain the sponsorship or co-signature of an elected Town Meeting Member before otherwise germane advocacy may reliably enter a Town-operated communication system.

That requirement does not merely regulate subject matter. It conditions access upon finding an intermediary willing to associate his or her name with another person's speech.

My examples illustrate the practical consequence.

In 2022, concerning Article 38, I sought to distribute advocacy under the newly announced system. The required intermediary became a gatekeeper who was concerned about being held responsible for my words.

In 2024, concerning Article 14, the Moderator acknowledged that my material was applicable to the article but declined to co-sign it for electronic distribution.

In 2024, concerning Article 56, I submitted technical, article-specific financial advocacy concerning the Prudent Investor rule. It likewise did not enter the Town Meeting communication archive through the Town's normal electronic channel.

The question is therefore not whether the Town must accept "anything." It is why an identified Arlington resident's germane advocacy requires sponsorship by an elected insider before it may obtain reliable access to Town Meeting Members through Town-operated systems.

Town Meeting Member Contact List

I am aware that residents may request contact information and email Town Meeting Members individually.

That is not an equivalent substitute.

Individual email distribution is vulnerable to incomplete addresses, spam filtering, blocking, delivery problems, and private social pressure. It also removes the communication from the organized Town Meeting archive.

The distinction is particularly evident when official or institutionally solicited materials supporting a warrant article are preserved alongside Town Meeting records while germane resident opposition is left scattered among private inboxes.

My request is not merely for the ability to communicate somehow. It is for neutral and reliable access to the same governmental information environment in which Town Meeting Members receive and later retrieve article-related materials.

Public Record and Correspondence Received

To be precise, I am not claiming that a resident submission must become a “public record” only by being posted on a website. Materials received by municipal officials may already constitute public records under Massachusetts law, subject to applicable exemptions.

What I am requesting is that resident warrant-article correspondence be **received, retained, associated with the relevant article, and made publicly accessible in the same general manner as other supporting Town Meeting documents.**

Arlington already uses analogous systems for other elected bodies.

The Select Board, Redevelopment Board, and School Committee regularly receive correspondence that is identified with meeting materials and retained alongside other agenda-related records. Receipt of such correspondence does not make the correspondence part of the formal proceedings and does not require the body to endorse its content.

There is no obvious reason the same administrative model could not be used for Town Meeting.

Other Massachusetts Communities

You asked whether other communities have models that Arlington could examine.

Lexington provides one useful example. Its 2026 Annual Town Meeting procedures allow members of the public who cannot attend to submit comments electronically. Town staff may read those comments into the meeting, subject to time limitations and parliamentary rules.

That system is actually broader than what I am proposing.

I am not asking that every resident submission be read into Town Meeting proceedings. I am asking for an objective means by which identified residents may submit germane written advocacy for retention and public availability with the relevant warrant article.

Lexington demonstrates, at minimum, that a Massachusetts representative Town Meeting can operate a direct, identified, regulated public-submission mechanism without creating an unrestricted forum in which anyone may submit anything at any time.

I have not yet identified another Massachusetts town that permits resident advocacy concerning Town Meeting articles but conditions access to its principal Town Meeting distribution or archival system upon obtaining the co-signature of an elected Town Meeting Member.

If Arlington is aware of such a model, I would appreciate receiving it.

Request for a Direct Response

I therefore respectfully renew my request that the Select Board place this issue on a public agenda for discussion and action.

I also ask that the Town provide a written response to the following:

1. What governmental authority established the May 16, 2022 co-signer requirement?
2. What official or governmental body presently has authority to amend or eliminate it?
3. What authority gives the Moderator final approval over submissions to the Town-operated TMM Email List and Annotated Warrant outside the proceedings of Town Meeting?
4. What records document the consultation with the Town Clerk and Town staff referenced in the May 16, 2022 announcement?
5. Why may germane written advocacy from an identified Arlington resident not be submitted directly under objective, viewpoint-neutral criteria?
6. What prevents the Town from creating a "Correspondence Received" mechanism through which such submissions are retained and publicly associated with the relevant warrant article?
7. Is the Town aware of another Massachusetts representative Town Meeting that requires a resident to obtain an elected Town Meeting Member co-signer before resident advocacy may be included in the Town's principal Town Meeting communications archive?

I believe these questions can be answered independently of whether the Town Meeting Procedures Committee ultimately recommends changes to Town Meeting procedure.

Thank you for your consideration.

Stephen Harrington

"We are committed to building a community where everyone is heard."

On Mon, Aug 17, 2026 at 10:30 AM Stephen Harrington <stephenharrington@yahoo.com> wrote:

Begin forwarded message:

From: Jim Feeney <jfeeney@town.arlington.ma.us>
Date: August 12, 2026 at 11:29:46 AM EDT
To: Stephen Harrington <stephenharrington@yahoo.com>, sbadmin <sbadmin@town.arlington.ma.us>
Cc: John Hurd <jhurd@town.arlington.ma.us>, Greg Christiana <gchristiana@town.arlington.ma.us>
Subject: Re: Town meeting communication channel issues

Good morning Mr. Harrington,

Your request for a public communication channel at Town Meeting was discussed by the Town Meeting Procedures Committee at their meeting on August 4th. I have copied the Town Moderator here. When draft minutes are available, I am sure they can be provided.

Of course, if the Town were to formally establish such a public forum, it is agreed that content neutrality would be paramount. So, a potential outcome could be that anyone could electronically submit anything, without any sort of verification, perhaps unrelated to matters before Town Meeting, at any time, and we would be required to manage and disseminate those communications.

In the meantime, have you used [this form](#) to request the Town Meeting Member contact list to email Town Meeting Members directly?

It is worth noting neither the Town Manager nor Select Board can direct the Moderator to institute a practice at Town Meeting or direct the Town Meeting Procedures Committee to recommend a practice to Town Meeting. But with that being said, if you are aware of an existing model for such a forum in another community, I would be happy to conduct outreach to see what their experience has been, and what Arlington may be able to learn.

Thanks-

Jim

Town of Arlington | **James Feeney**
Home Town Manager
Town of Arlington, MA
781-316-3010
jfeeney@town.arlington.ma.us

Arlington values equity, diversity, and inclusion. We are committed to building a community where everyone is heard, respected, and protected.

From: Stephen Harrington <stephenharrington@yahoo.com>

Sent: Monday, July 27, 2026 9:15 PM

To: sbadmin <sbadmin@town.arlington.ma.us>

Cc: John Hurd <jhurd@town.arlington.ma.us>; Jim Feeney <jfeeney@town.arlington.ma.us>

Subject: Town meeting communication channel issues

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please, include the Letter below as correspondence received for the next board meeting and disseminate to Board members.

Stephen Harrington
Columbia Rd
Arlington

My name is Stephen Harrington. I live at 74 Columbia Road in Arlington.

First I thank Chief Flaherty for her common sense solution to the cemetery parking issue with residents and visitors parking overnight and contractors blocking grave site access. Her professionalism and de-escalation of the issue is a lesson for all of us.

Tonight, I am asking the Town to stop requiring resident advocacy to pass through insider permission before elected Town Meeting Members can reliably receive it and that such advocacy enters into the public record as Correspondence Received alongside other related documents.

Since COVID, Arlington Town Meeting has relied heavily on electronic communication. That changed the practical meaning of resident petition rights. In the old physical Town Meeting environment, residents could leave advocacy on the chairs of each member petitioning representatives directly in writing. Today, leaving advocacy on "the chairs" is banned and the meaningful channel became the Town Meeting Email List and related Town-controlled systems.

The general public does not have direct access to that channel. Residents must find a Town Meeting Member or official willing to submit or co-sign their advocacy. Materials are subject

to Moderator review for "scope," "appropriateness," and civility. The fallback — emailing Town Meeting Members individually — is unreliable, vulnerable to blocking, spam filtering, missing addresses, and private social pressure while removing the advocacy from the public record.

This is not equal access. It is institutional gatekeeping.

I have overwhelming documentation of this problem. I will mention only three examples tonight, time permitting.

This concern became sharper when the Moderator administered a civility oath and stated that he would hold members to its spirit and values whether or not they took the oath. Civility may be a personal virtue, but as a government standard it becomes dangerous when paired with discretionary control over resident speech. TMMs have been warned by the Moderator using civility as a filter on speech directed at town officials outside of Town Meeting.

I gave the Town frequent offramps; all ignored.

In 2026, I demanded a neutral, unblockable, Town-administered resident communication channel that becomes part of the public record. Correspondence Received.

That remains my request.

I am asking for two things: first, that this issue be placed on a public agenda for discussion and action; second, that the Town Manager provide a written response addressing the Town's authority over the TMM Email List, the basis for excluding direct resident submissions, and the process for adopting a neutral resident submission channel that becomes part of the public record.

The Town may not reject resident advocacy based on viewpoint, criticism of officials, tone, subjective civility, or undefined appropriateness. The issue is whether Arlington may design a Town-controlled communication system where residents need insider permission before elected representatives can reliably access germane advocacy.

I ask this Board to fix that system.

Examples:

In 2022, with Article 38, I tried to send advocacy to Town Meeting under the new process that required a Town Meeting Member co-signer. That intermediary became a gatekeeper, under social and political pressure, with concerns about being held accountable for my words.

In 2024, with Article 14, the Moderator acknowledged the material was applicable to the article, but refused to "co-sign" for electronic distribution.

In 2024, with Article 56, I submitted technical, article-specific financial advocacy. Again, access to the official Town Meeting channel was denied because I was a resident rather than an approved insider.

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